

**FEDERAL MARITIME COMMISSION**  
**Office of Administrative Law Judges**

BAKERLY, LLC, *Complainant*

v.

SEAFRIGO USA, INC., *Respondent*.

**DOCKET NO. 22-17**

Served: March 30, 2023

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**ORDER OF:** Linda S. Harris CROVELLA, *Administrative Law Judge*.

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**ORDER ON COMPLAINANT’S MOTION FOR PROTECTIVE ORDER (MOTION TO QUASH)**

On March 29, 2023, Complainant filed a Motion for Protective Order and a Motion for Expedited Review of the motion. The Motion for Protective Order will be treated as a motion to quash notices of deposition (“Motion to Quash”), as Complainant seeks to block the taking of three depositions because “Respondent failed to serve the notices for deposition on or before the last day to serve discovery requests, and Respondent failed to provide reasonable notice for the depositions.”

On March 29, 2023, the undersigned issued an Order to Respond to Motion for Protective Order finding good cause for expedited review, and Respondent filed its Opposition to Motion for Protective Order (“Opposition to Motion to Quash”), immediately thereafter, on the same date. Respondent states that it sent the March 28, 2023, notices of deposition for an unidentified corporate representative and “two named individuals” because it “recogniz[ed] the need for depositions in such a document-intensive proceeding.” Opposition to Motion to Quash at 2. Respondent argues that while it did provide short notice to depose three individuals, there is no amount of time specified in the rules regarding what amount of time is “reasonable.” *Id.*

The first discovery and briefing schedule was set by Scheduling Order dated September 15, 2022, and was based on the parties’ proposal. The Scheduling Order set December 20, 2022, as the last day to serve discovery requests, and January 19, 2023, as the close of discovery, and a briefing schedule was included. On December 21, 2022, the parties filed a Joint Request for Extension of Discovery Deadlines (“Joint Discovery Extension Request”) requesting an extension of the schedule by 60-days to pursue mediation. On January 12, 2023, the undersigned issued an order granting the request for a 60-day extension of the discovery and briefing schedule. On March 21, 2023, the parties filed a joint status report (“March 21, 2023 JSR”) in which they requested a second 60-day extension of the discovery and briefing deadlines. On March 22, 2023, the undersigned issued an Amended Scheduling Order, denying the parties’ joint motion to extend the discovery schedule another 60-days, but granting them “a short extension to the schedule to complete whatever discovery is left,” but maintaining the briefing schedule.

As noted above, the last day to serve discovery requests was initially set for December 20, 2022, the day before the parties filed the Joint Discovery Extension Request. Scheduling Order at 1; Joint Discovery Extension Request at 2. Accordingly, when the joint request to extend discovery deadlines by 60-days was granted, the last day to serve discovery requests was extended to February 18, 2023, and the close of discovery was extended to March 19, 2023. When the parties filed their March 21, 2023, JSR with a request to extend discovery another 60-days, they were granted a short period of 12-days to complete responses to their outstanding requests, not to initiate new requests. No extension of the last day to serve discovery requests or to file briefs was included in the Amended Scheduling Order. Amended Scheduling Order at 2. Respondent does not address in its opposition how the last day to serve discovery requests and the close of discovery could somehow merge when the original schedule set them to fall a month apart, and the extension merely moved those dates forward 60-days. Rather, Respondent focuses on the reasonableness of the notices.

In support of the reasonableness of its notices, Respondent relies on *Fu v. Consolidated Edison Company of New York, Inc.*, 2018 U.S. Dist. LEXIS 156463, at \*11-12 (S.D.N.Y. 2018), where plaintiff “sought to extend the discovery and deposition deadlines approximately five times,” and defense counsel tried to schedule plaintiff’s deposition repeatedly during the extended periods and “pursuant to [the judge’s] scheduling order....” *Id.* at \*2-3. In that case regarding sanctions for failure to appear for the scheduled deposition, the court held that “six days is at the shorter end of the spectrum of reasonable notice” but that, “the reasonableness of notice must be determined in light of the facts and circumstances of the individual case.” *Id.* at \*11-12, citing *Davidson v. Dean*, 204 F.R.D. 251, at 256 (S.D.N.Y. 2011) (cases in accord omitted). Given that the plaintiff requested the extension of the deposition deadline and had been asked to select a date for deposition on several occasions, the court found that the notice was reasonable. *Id.*

Relying on the above case, Respondent contends that the notices of deposition it propounded six days before the extended close of discovery are reasonable. Respondent also cites *Federal Aviation Administration v. Landy*, 705 F.2d 624, 634 (2d Cir. 1983), where the lower court allowed the oral deposition of a pilot on only four days’ notice because the pilot had been located only ten days before the trial and was not available for the trial in New York.

The facts in the case *sub judice* are not equivalent to those of either of the two cases on which Respondent relies. Respondent does not allege that the three deponents it currently seeks were only located after the multiple discovery deadlines passed in this case, or that it had tried to no avail to schedule depositions prior to the deadlines. As long ago as December 21, 2022, when the parties jointly moved for an extension of the discovery deadlines by 60-days to engage in mediation with CADRS, the parties asserted that they had “timely served and responded to discovery requests and have negotiated in good faith to resolve disputes.” Joint Discovery Extension Request at 1. Further, Complainant contends that the parties never discussed the need for depositions, and they each served their second sets of discovery requests in February 2023. Motion to Quash at 1-2 and fn. 1. Respondent does not deny or address that contention, nor provide any explanation for why it waited until now to notice depositions.

The three notices of deposition propounded by Respondent on Complainant on March 28, 2023, are untimely because they were served after the last day to serve discovery requests, and

because they did not provide reasonable notice. The parties should proceed to brief the schedule as required by the deadlines in the Amended Scheduling Order issued on March 22, 2023. Any further concerns about discovery should be addressed in the parties' briefs.

For the reasons discussed above, Complainant's Motion to Quash the three notices of deposition is hereby **GRANTED**.



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Linda S. Harris Crovella  
Administrative Law Judge